3 – European regulation on machinery (part 1) (EU) 2023/1230

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3 – European regulation on machinery (1)

- Purpose of this legislation
- Scope
- Definitions
- Placing on the market
- Role of harmonised standards
- Obligations for the manufacturer and other economic operators

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- Whereas …. (Considerations 1-86)

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  - Art. 2 Scope
  - Art. 3 Definitions
  - Art. 4 Free movement
  - Art. 5 Protection of persons during installation or use of machinery or related products
  - Art. 6 Categories of machinery and related products listed in **Annex I** subject to relevant conformity assessment procedures
  - Art. 7 Safety components → **Annex II**
  - Art.8 Essential health and safety requirements for products within the scope of this Regulation → **Annex III**
  - Art. 9 Specific Union harmonization legislation

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Correlation Table

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Directive 2006/42/EC	This Regulation
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Annex I - General principles and Section 1.1.1 (Definitions)	Annex III – Part A (Definitions) and Part B (General principles)
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Whereas...

- Harmonise health and safety requirements for machinery in all Member States and **to remove obstacles to trade in machinery** between Member States.
- The **social cost of the large number of accidents caused directly by the use of machinery can be reduced by inherently safe design** and construction of machinery and by proper installation and maintenance.
- Experience with the application of Directive 2006/42/EC has shown inadequacies and inconsistencies in the product coverage and conformity assessment procedures.
- Member States are responsible for **protecting**, on their territory, the **health and safety of persons**, in particular **workers and consumers**.

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Whereas...

- Lays down rules on the accreditation of conformity assessment bodies, and the general principles of the **CE marking**.
- Sets out rules on **market surveillance and control of products** entering the Union market.
- Lays down the tasks of economic operators regarding products subject to certain Union harmonisation legislation. It also provides that such products are to be placed on the market only if there is **an economic operator established in the Union who is responsible** for those tasks.
- This Regulation should **cover products which are new to the Union market** when placed on the market, and are either new products made by a manufacturer established in the Union or products, whether new or second-hand, imported from a third country.

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Whereas...

- The emergence of new **digital technologies**, like **artificial intelligence**, the **internet of things** and robotics, raises new challenges in terms of product safety.
- In order to ensure that the scope of this Regulation is sufficiently clear, a distinction should be made between machinery, related products and partly completed machinery. Moreover, related products should be understood as comprising interchangeable equipment, safety components, lifting accessories, chains, ropes and webbing, and removable mechanical transmission devices, which are all products within the scope of this Regulation.
- The **purpose** of this Regulation is **to address the risks stemming from machinery function** and not from the transport of goods, persons or animals. Consequently, this Regulation should not apply to means of transport by air, on water and on rail networks although it should still apply to the machinery mounted on those means of transport. Means of transport by road that are not yet covered by a specific Union legal act should be regulated by this Regulation except in respect of risks that might arise from circulation on public roads. This means that vehicles, including e-bikes, e-scooters and other personal mobility devices are covered by this Regulation.

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Whereas...

- Machinery missing only the upload of software intended for the specific application foreseen by the manufacturer, and which is the subject of the conformity assessment procedure of the machinery, should fall under the definition of machinery.
- Safety components should cover not only physical devices but also digital devices.
- For trade fairs, exhibitions and demonstrations or similar events, it should be possible to display products within the scope of this Regulation which do not meet the requirements of this Regulation, since this would not present any safety risk. However, for the sake of transparency, interested parties should be properly informed that the products within the scope of this Regulation are not compliant and cannot be purchased.

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Whereas...

- Machinery or related products should **comply with the essential health and safety requirements** when placed on the market or put into service. Where such products are subsequently modified, by physical or digital means, in a way that is not foreseen or planned by the manufacturer and which affects the safety of such products by creating a new hazard or increasing an existing risk, the modification should be considered as substantial when new significant protective measures are required.
- In order to ensure the compliance of such a product with the relevant essential health and safety requirements, the person that carries out the **substantial modification** should be required to **perform a new conformity assessment** before placing the modified product on the market or putting it into service.
- **All economic operators** intervening in the supply and distribution chain should **take appropriate measures** to ensure that they make available on the market only products within the scope of this Regulation, which are in **conformity** with this Regulation.

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Whereas...

- In order to facilitate communication between economic operators, market surveillance authorities and users, **manufacturers and importers should indicate a website, email address or other digital contact in addition to the postal address**.
- The manufacturer, having detailed knowledge of the design and production process, is best placed to carry out the conformity assessment procedure. **Conformity assessment should therefore remain solely the obligation of the manufacturer**.
- The **manufacturer** should also ensure that **a risk assessment is carried out for the product** within the scope of this Regulation, which the manufacturer wishes to place on the market or put into service. In this context, the **manufacturer should determine which essential health and safety requirements are applicable** to the product within the scope of this Regulation and which measures need to be taken to address the risks that the product might present. The **risk assessment should also address future updates or developments of software installed in the machinery** or related product, which are foreseen when the machinery or related product is placed on the market or put into service.

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Whereas...

- The safety of the entire machinery or related product relies on the dependencies and interactions between its components, including partly completed machinery, and, if relevant, with other machinery or related products that participate in a coordinated assembly of a machinery system, which can also result in an assembly of machinery. Therefore, manufacturers should be required to **assess all those interactions in the risk assessment**.
- It is essential that, **before drawing up the EU declaration of conformity** or the EU declaration of incorporation, the manufacturer **prepare technical documentation**. The manufacturer should be required to make that technical documentation available to national authorities on request or to notified bodies in the context of the relevant conformity assessment procedure.
- A person who manufactures machinery or related **products for his or her own use** is considered as to be a manufacturer and should be required to **fulfil all the related obligations**. Such machinery needs to comply with this Regulation before it is put into service.

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Whereas...

- … **importers to ensure** that products within the scope of this Regulation that they place on the market **comply with the requirements** of this Regulation and **do not present a risk to the health and safety** …
  - importers should indicate on those products their respective names, registered trade names or registered trade marks, postal addresses, websites, email addresses or other digital contacts at
- As the distributor makes products available on the market after they have been placed on the market by the manufacturer or the importer, the **distributor should act with due care to ensure** that its handling of the product does not adversely affect its compliance with the requirements set out in this Regulation.

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Whereas...

- Economic operators should ensure that **all relevant documentation**, such as the **instructions for use**, while containing precise and **comprehensible** information, is easily **understandable** and **available in a language which can be easily understood by users**, as **determined by the Member State** concerned.
- **Instructions** and other relevant documentation **may be provided in a digital printable format**. However, the manufacturer should ensure that distributors can provide, at the **request of the user at the time of the purchase**, the **instructions for use in a paper format free of charge**.
- Any **economic operator** who either **places a product on the market** under its own name or trademark or **modifies a product** in such a way that compliance with the requirements of this Regulation might be affected should be considered to be the manufacturer and **should assume the obligations of the manufacturer**.

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Whereas...

- This Regulation should be **limited to setting out the essential health and safety requirements**, supplemented by a number of more specific requirements for certain categories of products within the scope of this Regulation.
  In order to facilitate the assessment of conformity with those health and safety requirements, it is necessary to provide for a **presumption of conformity** for products within the scope of this Regulation which are in **conformity with harmonised standards** that are developed and in respect of which the references are published in the Official Journal of the European Union in accordance with Regulation (EU) No 1025/2012 of the European Parliament and of the Council (13) for the purpose of expressing the detailed technical specifications of those requirements.

- **Compliance with harmonised standards** and with common specifications established by the Commission **should be voluntary**. **Alternative** technical solutions should therefore be acceptable where compliance of the products with the relevant essential health and safety requirements is **demonstrated in the technical file**.

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Whereas...

- With a view to **addressing the risks stemming from malicious third party actions** that have an impact on the safety of products, this Regulation should include essential health and safety requirements in respect of which conformity to the … **relevant cybersecurity certification scheme**.
- Manufacturers should draw up an **EU declaration of conformity** to provide information on the conformity of machinery or related products with this Regulation. Manufacturers may also be required by other Union legal acts to draw up an EU declaration of conformity.

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Whereas...

- The machinery field embraces new ways of designing and constructing machinery or related products that might present higher risk factors, regardless of intended use or any reasonably foreseeable misuse. For example, systems with **self-evolving behaviour** ensuring safety functions should be included in Annex I due to their characteristics such as data dependency, opacity, autonomy and connectivity, which might considerably increase the probability and severity of harm and seriously affect the safety of the machinery or related product.
  Therefore, the **conformity assessment of a safety component or a system with self-evolving behaviour ensuring safety functions should be carried out by a third party**, whether or not the safety component has been placed independently on the market or is part of a system embedded in machinery that is placed on the market.
  However, where machinery embeds a system of which the safety component has already been subject to third party conformity assessment when it was placed independently on the market, that machinery should not have to be re-certified by a third party solely on the basis of the embedding of that system.

- Provisions related to the **third-party conformity assessment of software** ensuring safety functions set out should only apply to systems with a fully or partially self-evolving behaviour using machine learning approaches ensuring safety functions. On the contrary, those provisions should not apply to software incapable of learning or evolving,

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Whereas...

- The **CE marking**, indicating the conformity of a product, is the visible consequence of a whole process comprising conformity assessment in a broad sense. The general principles governing the CE marking are set out in Regulation (EC) No 765/2008.
- The CE marking should be the only marking which guarantees that machinery or related products comply with the requirements of this Regulation. Member States should therefore take appropriate action as regards other markings which are likely to mislead third parties as to the meaning or the form of the CE marking.
- In order to enable economic operators to demonstrate and the competent authorities to ensure that machinery or related products made available on the market are in conformity with the essential health and safety requirements, it is necessary to provide for conformity assessment procedures.

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Whereas...

- **Manufacturers should be responsible for ensuring that a conformity assessment is carried out** in respect of their machinery or related products in accordance with this Regulation. Nevertheless, for certain categories of machinery or related products that have a higher risk factor, a stricter conformity assessment procedure requiring the participation of a notified body should be required.

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Scope & Definitions

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Subject matter

- Art. 1
- This Regulation lays down **health and safety requirements** for the **design and construction of machinery**, **related products** and **partly completed machinery** to allow them to be made available on the market or put into service while **ensuring a high level of protection** of the health and safety of persons, in particular **consumers** and **professional users**, and, where appropriate, of domestic animals and property, and, where applicable, of the environment. It also establishes **rules on the free movement** of products within the scope of this Regulation in the Union.

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Scope

- Art. 2 (1)
- This Regulation applies to **machinery** and the following **related products**:
  - a) interchangeable equipment;
  - b) safety components;
  - c) lifting accessories;
  - d) chains, ropes and webbing;
  - e) removable mechanical transmission devices
- This Regulation also applies to **partly completed machinery**.
- The related products listed in the subparagraph and partly completed machinery shall together be referred to as '**products within the scope of this Regulation**'

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Definition “Machinery”

- Art. 3 (1)
- (a) an **assembly**, fitted with or intended to be fitted with a **drive system** other than directly applied human or animal effort, consisting of **linked parts or components**, **at least one of which moves**, and which are **joined together** for a **specific application;**
- (b) an assembly referred to in point (a), **missing only the components to connect** it on site or to sources of energy and motion;

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Definition “Machinery”

- Art. 3 (1)
- (c) an assembly referred to points (a) and (b), **ready to be installed** and able to function as it stands **only if mounted on a means of transport**, or installed in a **building** or a **structure**;

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20/07/2026



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Definition “Machinery”

- Art. 3 (1)
- (d) **assemblies of machinery** referred to in points (a), (b) and (c), **or of partly completed machinery**, which, in order to achieve the same end, are **arranged and controlled so that they function as an integral whole**;

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Definition “Machinery”

Art. 3 (1)

(e) an **assembly** of linked parts or components, at least one of which moves, and which are joined together, **intended for lifting loads** and whose only **power source is directly applied human effort**;



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Definition “Machinery”

Art. 3 (1)

(f) an **assembly** as referred to in points (a) to (e) **missing only the uploading of the software** intended for the specific application foreseen by the manufacturer;



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Scope

- Art. 2 (1)
- This Regulation applies to machinery and the following related products:
  - a) **interchangeable equipment**;
  - b) safety components;
  - c) lifting accessories;
  - d) chains, ropes and webbing;
  - e) removable mechanical transmission devices
- This Regulation also applies to **partly completed machinery**.
- The related products listed in the subparagraph and partly completed machinery shall together be referred to as '**products within the scope of this Regulation**'

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Definition “Interchangeable equipment”

- Art. 3 (2)
- ‘interchangeable equipment’ means a **device** which, **after the putting into service of machinery** or an agricultural or forestry tractor, is **assembled with that machinery** or agricultural or forestry tractor by the operator **in order to change its function or to attribute a new function** to it, provided that the device is **not a tool**;

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Scope

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  - a) interchangeable equipment;
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Definition “Safety component”

- Art. 3 (3)
- ‘safety component’ means a
  - **physical or digital component**, including software, of a product within the scope of this Regulation,
  - which is designed or intended to **fulfil a safety function**
  - and which is **independently placed on the market**,
  - the **failure or malfunction** of which **endanger the safety** of persons,
  - but which is **not necessary in order for that product to function** or for which normal components may be substituted in order for that product to function;
- NOT: the safety component that is originally fitted to the machine

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Definition “Safety function”

- Art. 3 (4)
- ‘safety function’ means a function that serves to fulfil a protective measure designed to eliminate, or, if that is not possible, to reduce, a risk, which, if it fails, could result in an increase of that risk;

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Annex II – Indicative list of safety components

1. **Guards** for removable mechanical transmission devices.
2. Protective devices designed to **detect the presence of persons**.
3. Power-operated **interlocking movable guards** designed to be used as safeguards in machinery referred to in points 9, 10 and 11 of Annex I, Part B.
4. **Logic units** to ensure safety functions.
5. **Valves** with additional means for **failure detection** intended for the control of dangerous movements of machinery.
6. **Extraction systems** for machinery emissions.
7. **Guards** and protective devices designed to **protect persons against moving parts** involved in the process of the machinery.
8. **Monitoring devices for loading** and movement control in lifting machinery.
9. **Restraint systems** to keep persons in their seats.
10. **Emergency stop devices**.

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Annex II – Indicative list of safety components

11. **Discharging systems** to prevent the build-up of potentially dangerous electrostatic charges.
12. **Energy limiters** and **relief devices** referred to in sections 1.5.7, 3.4.7 and 4.1.2.6 of Annex III.
13. Systems and devices to **reduce the emission of noise** and vibrations.
14. Roll-over protective structures (**ROPS**).
15. Falling-object protective structures (**FOPS**).
16. **Two-hand control** devices.

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Annex II – Indicative list of safety components

- 17. The following components for machinery designed for **lifting and/or lowering persons** between different landings:
  - (a) devices for locking landing doors;
  - (b) devices to prevent the load-carrying unit from falling or unchecked upwards movement;
  - (c) overspeed limitation devices;
  - (d) energy-accumulating shock absorbers, non-linear or with damping of the return movement;
  - (e) energy-dissipating shock absorbers;
  - (f) safety devices fitted to jacks of hydraulic power circuits and used to prevent falls;
  - (g) safety switches containing electronic components.

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Annex II – Indicative list of safety components

- 18. **Software** ensuring **safety functions**.
- 19. Safety components with **fully or partially self-evolving behaviour** using machine learning approaches ensuring safety functions.
- 20. **Filtration systems** intended to be integrated into machinery cabins in order to protect operators or other persons against hazardous materials and substances, including plant protection products, and filters for such filtration systems.

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Scope

- Art. 2 (1)
- This Regulation applies to machinery and the following related products:
  - a) interchangeable equipment;
  - b) safety components;
  - c) **lifting accessories**;
  - d) **chains, ropes and webbing**;
  - e) removable mechanical transmission devices
- This Regulation also applies to partly completed machinery.
- The related products listed in the subparagraph and partly completed machinery shall together be referred to as ‘products within the scope of this Regulation’

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Definition “Lifting accessory”

- Art. 3 (5)
- ‘lifting accessory’ means a component or equipment, **not attached to the lifting machinery**, which **enables the load to be held**, which is **placed between the machinery and the load** or on the load itself, or which is intended to constitute an integral part of the load and which is independently placed on the market, including slings and their components;

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Definition “Chains, ropes & webbing”

- Art. 3 (6) (7) (8)

- ‘chains’ means chains designed and constructed for lifting purposes as part of lifting machinery or lifting accessories;
- ‘ropes’ means ropes designed and constructed for lifting purposes as part of lifting machinery or lifting accessories;
- ‘webbing’ means webbing designed and constructed for lifting purposes as part of lifting machinery or lifting accessories;





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Scope

- Art. 2 (1)
- This Regulation applies to machinery and the following related products:
  - a) interchangeable equipment;
  - b) safety components;
  - c) lifting accessories;
  - d) chains, ropes and webbing;
  - e) **removable mechanical transmission devices**
- This Regulation also applies to **partly completed machinery**.
- The related products listed in the subparagraph and partly completed machinery shall together be referred to as '**products within the scope of this Regulation**'

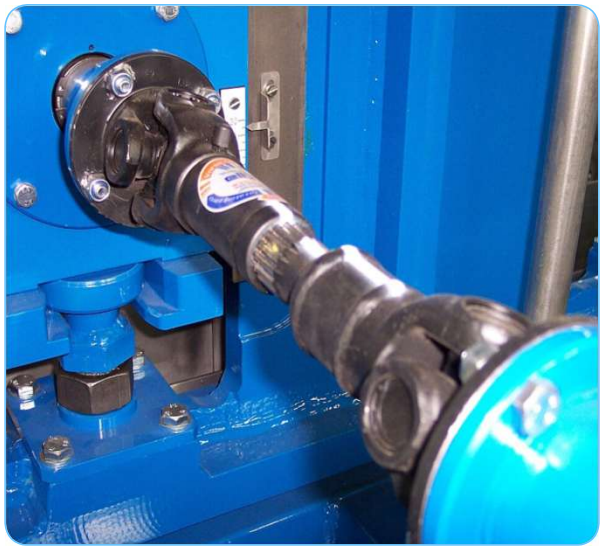
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Definition “Removable mechanical transmission device”

- Art. 3 (9)
- ‘removable mechanical transmission device’ means a **removable component for transmitting power between self- propelled machinery** or a tractor and other machinery or related products by joining them at the **first fixed bearing**; when it is placed on the market with a guard, the device and the guard are to be regarded as one item;

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- This Regulation also applies to **partly completed machinery**.

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Definition “Partly completed machinery”

- Art. 3 (10)
- ‘partly completed machinery’ means an **assembly which is not yet machinery** as it **cannot in itself perform a specific application** and which is only **intended to be incorporated into or assembled with machinery** or other partly completed machinery or equipment, **thereby forming machinery**;
  - Example: because robotics equipment is classified as "incomplete machinery", Brooks issues a Declaration of Incorporation and standard compliance certifications rather than a full Declaration of Conformity.

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The PreciseFlex robots are intended for use with other equipment and are considered a subassembly rather than a complete piece of equipment on their own.



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Out of Scope





- Art. 2 (2)
- This Regulation does not apply to:
  - (a) **safety components** that are intended to be used as **spare parts to replace identical components** and are supplied by the manufacturer of the original machinery, related product or partly completed machinery;
  - (b) specific **equipment for use in fairgrounds or amusement parks**;
  - (c) machinery and related products specially designed for **use within or used in a nuclear installation** and whose conformity with this Regulation may undermine the nuclear safety of that installation;
  - (d) **weapons**, including firearms;



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Out of Scope





- Art. 2 (2)
- This Regulation does not apply to:
  - (e) means of transport by air, on water and on rail networks except for machinery mounted on those means of transport;
  - (f) aeronautical products, parts and equipment that fall within the scope of Regulation (EU) 2018/1139 and the definition of machinery under this Regulation, insofar as Regulation (EU) 2018/1139 covers the relevant essential health and safety requirements set out in this Regulation;
  - (g) motor vehicles and their trailers, as well as systems, components, separate technical units, parts and equipment designed and constructed for such vehicles, which fall within the scope of Regulation (EU) 2018/858, except for machinery mounted on those vehicles;
  - (h) two- or three-wheel vehicles and quadricycles, as well as systems, components, separate technical units, parts and equipment designed and constructed for such vehicles, that fall within the scope of Regulation (EU) No 168/2013, except for machinery mounted on those vehicles;

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Out of Scope





- Art. 2 (2)
- This Regulation does not apply to:
  - (i) agricultural and forestry tractors, as well as systems, components, separate technical units, parts and equipment designed and constructed for such tractors, that fall within the scope of Regulation (EU) No 167/2013, except for machinery mounted on those tractors;
  - (j) motor vehicles exclusively intended for competition;
  - (k) seagoing vessels and mobile offshore units and machinery installed on board such vessels or units;
  - (l) machinery or related products specially designed and constructed for military or police purposes;

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Out of Scope

- Art. 2 (2)
- This Regulation does not apply to:
  - (m) machinery or related products specially designed and constructed **for research purposes** for **temporary use** in laboratories;



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Permanently installed vs. temporary research use

- All **laboratory equipment with moving parts for general use must be fully compliant** with the European Machinery Directive 2006/42/EC (until 19/1/2027) or the European Regulation on Machinery (EU) 2023/1230 (from 20/1/2027).
- Both Article 2 (a) of the European Machinery Directive 2006/42/EC and Article 3 (1) (a) of the European Regulation on Machinery (EU) 2023/1230, define machinery as “an assembly, fitted with or intended to be fitted with a drive system other than directly applied human or animal effort, consisting of linked parts or components, at least one of which moves, and which are joined together for a specific application”.
- The exclusion to comply with the European Machinery Directive 2006/42/EC, set out in Article 1 (2) (h), as well as the exclusion to comply the European Regulation on Machinery (EU) 2023/1230 set out in Article 2 (2) (m), “machinery specially designed and constructed for research purposes for temporary use in laboratories”, will not be accepted.
- **According to §60 of the official GUIDE TO APPLICATION OF THE MACHINERY DIRECTIVE of the European Commission the exclusion only applies to equipment designed and constructed for temporary research use, that is to say, equipment that will cease to be used when the research projects for which it was designed and constructed have been completed.**
- Consequently, the **exclusion does not apply to machinery permanently installed in laboratories that may be used for general research purposes** or to machinery installed in laboratories for purposes other than research such as, for example, for testing purposes.

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Out of Scope

- Art. 2 (2)
- This Regulation does not apply to:
  - (n) mine winding gear;



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Out of Scope

- Art. 2 (2)
- This Regulation does not apply to:
  - (o) machinery or related products intended to move performers during artistic performances;



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Out of Scope







- Art. 2 (2)
- This Regulation does not apply to:
  - (p) the following electrical and electronic products, insofar as they fall within the scope of Directive 2014/35/EU or of Directive 2014/53/EU:
    - (i) household appliances intended for domestic use which are not electrically operated furniture;
    - (ii) audio and video equipment;
    - (iii) information technology equipment;
    - (iv) ordinary office machinery, except additive printing machinery for producing three-dimensional products;
    - (v) low-voltage switchgear and control gear;
    - (vi) electric motors;

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Out of Scope

- Art. 2 (2)
- This Regulation does not apply to:
  - (q) the following high-voltage electrical products:
    - (i) switchgear and control gear;
    - (ii) transformers.

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Definition “Making available on the market”

- Art. 3 (11)
- ‘making available on the market’ means **any supply of a product** within the scope of this Regulation **for distribution or use** on the Union market **in the course of a commercial activity**, **whether in return for payment or free of charge**;

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Definition “Placing on the market”

- Art. 3 (12)
- ‘placing on the market’ means the **first making available of a product** within the scope of this Regulation on the Union market;
- ‘making available on the market’ means **any supply of a product** within the scope of this Regulation **for distribution or use** on the Union market **in the course of a commercial activity**, **whether in return for payment or free of charge**;

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Definition “Putting into service”

- Art. 3 (13)
- ‘putting into service’ means the **first use**, **for its intended purpose**, in the Union, of machinery or related products;

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Definition “Manufacturer”

- Art. 3 (18)
- ‘manufacturer’ means any natural or legal person who:
  - (a) **manufactures products within the scope** of this Regulation or who has those products designed or manufactured, and **markets those products** under its name or trademark; or
  - (b) **manufactures products within the scope** of this Regulation, and **puts those products into service for its own use**;
- *Even if it is used only 1x / Even if it is a prototype / Even if it is for its own use / Even if it is free of charge*
- *Every natural or legal person who makes machinery available and/or puts machinery into service for its own use*

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Definition “Authorised representative”

- Art. 3 (19)
- ‘authorised representative’ means any natural or legal person established within the Union who has received **a written mandate from a manufacturer to act on its behalf** in relation to specified tasks;

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Definition “Importer” / “Distributor”

- Art. 3 (20) (21)
- ‘importer’ means any natural or legal person **established within the Union who places a product** within the scope of this Regulation from a third country **on the Union market**;
- ‘distributor’ means any natural or legal person in the supply chain, **other than the manufacturer** or the importer, **who makes a product** within the scope of this Regulation **available on the market**;

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Definition “Economic operator”

- Art. 3 (22)
- ‘economic operator’ means the manufacturer, the authorised representative, the importer or the distributor;

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Definition “Essential health and safety requirements”

- Art. 3 (14)
- ‘essential health and safety requirements’ means the **mandatory provisions**, set out in **Annex III**, relating to the design and construction of products within the scope of this Regulation **to ensure a high level of protection of the health and safety of persons**, and, where appropriate, domestic animals and property, and, where applicable, of the environment;

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Definition “Substantial modification”

- Art. 3 (16)
- ‘substantial modification’ means **a modification of machinery** or a related product, by physical or digital means after that machinery or related product has been placed on the market or put into service, which is **not foreseen or planned by the manufacturer**, and **which affects the safety** of that machinery or related product, by **creating a new hazard**, or by **increasing an existing risk**, **which requires**:
  - (a) the **addition of guards** or **protective devices** to that machinery or related product the processing of which **necessitates the modification of the existing safety control system**; or
  - (b) the **adoption of additional protective measures** to **ensure the stability** or **mechanical strength** of that machinery or related product;

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Decision tree “Substantial modification”

- **Q1: Modification foreseen or planned by the manufacturer?**
  - YES ➔ No substantial modification
  - NO ➔ Q2
- **Q2: Affects the safety by creating a new hazard?**
  - YES ➔ Q4
  - NO ➔ Q3
- **Q3: Affects the safety by increasing an existing risk?**
  - YES ➔ Q4
  - NO ➔ No substantial modification
- **Q4: New hazard or increased risk requires** the **addition of guards** or **protective devices** + the processing of which **necessitates the modification of the existing safety control system**?
  - YES ➔ Substantial modification, which requires a new conformity assessment
  - NO ➔ Q5
- **Q5: New hazard or increased risk requires** the **adoption of additional protective measures** to **ensure the stability** or **mechanical strength**?
  - YES ➔ Substantial modification, which requires a new conformity assessment
  - NO ➔ No substantial modification

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Definition “Instructions for use”

- Art. 3 (17)
- ‘instructions for use’ means the **information**, **provided by the manufacturer** when the machinery or related product is placed on the market or put into service, to **inform the user** of the machinery or related product, **of the intended and proper use** of that machinery or related product, as well as **information on any precautions to be taken** when using or installing the machinery or related product, including information on the safety aspects, and on **how to keep that machinery** or related product **safe**, and to **ensure that it remains fit for purpose** during its **entire lifetime**;

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Definition “Technical specifications”

- Art. 3 (23)
- ‘technical specifications’ means a document that prescribes technical requirements to be fulfilled by products within the scope of this Regulation;

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Definition “Harmonised standard”

- Art. 3 (24)
- ‘harmonised standard’ means a harmonised standard as defined in Article 2, point 1, point (c), of Regulation (EU) No 1025/2012;
  - ‘standard’ means a technical specification, adopted by a recognised standardisation body, for repeated or continuous application, with which compliance is **not compulsory**, and which is one of the following:
    - (a) ‘international standard’ means a standard adopted by an international standardisation body;
    - (b) ‘European standard’ means a standard **adopted by a European standardisation organisation**
      (i.e. the European Committee for Standardisation (CEN), the European Committee for Electrotechnical Standardisation (CENELEC) or the European Telecommunications Standards Institute(ETSI)):
    - (c) ‘harmonised standard’ means a **European standard** adopted on the basis of a **request made by the Commission** for the **application of Union harmonisation legislation**;

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Purpose of harmonised standards

- Provide manufacturers or importers with "tools" for conformity assessment

  Correct application of a harmonised standard = presumption of conformity
  In case of doubt or accident, the burden of proof is reversed!

- Offer the possibility of not having to make an extensive risk analysis

  The application for CE marking is never mandatory, but the safety level is guaranteed

- Level = technical in nature
- Easier to adapt to the state of the art
- Level of the standard = rises slightly above the general requirements of the legislation
- Harmonised = Once accepted and published in the Official Journal of the European Union
  ➔ then applicable for CE marking

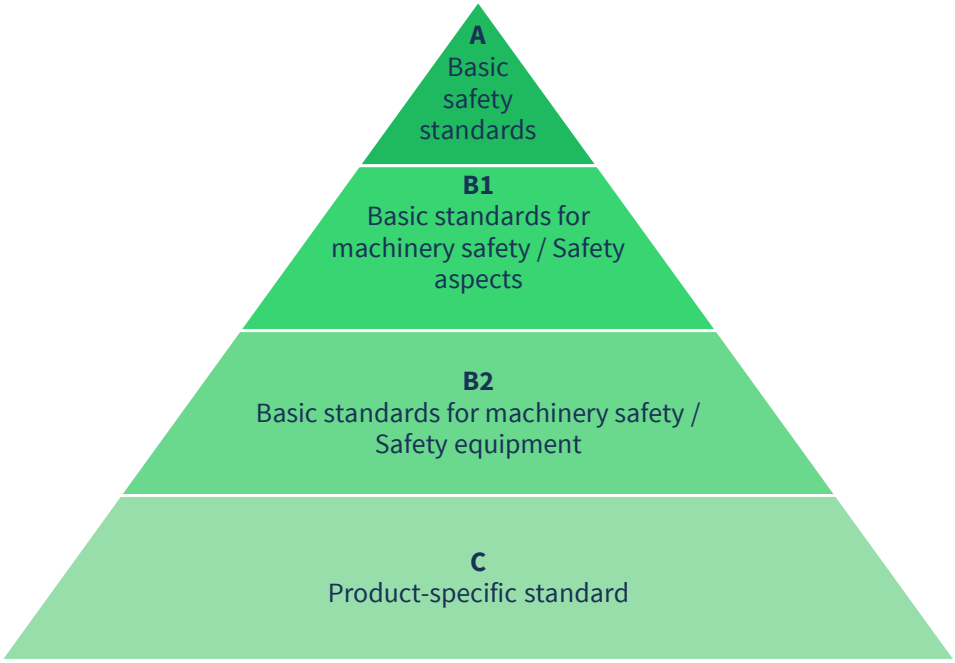
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Harmonised standards

- Once adopted, the national standardisation bodies must
  - Mandatory publish of the standard
  - Repeal or modify conflicting standards within six months (date of availability)
- Standards are periodically reviewed
  - Notice the publication year
  - Check if there is a modified version

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Types of harmonised standards



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Types of harmonised standards

- Provisions of a type C standard always take precedence over those of a type B standard.
- If no type C standard is available for a particular machine, it is necessary to check which type A's and B's apply and to make a risk analysis for the missing parts.

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Example of a type A-standard

- EN ISO 12100:2010

  Defines basic terminology and methodology used for obtaining machine safety (safe design, risk assessment and risk reduction)

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Example of a type B1-standard

- EN ISO 13855:2024
  Safety of machinery - Positioning of safeguards with respect to the approach of the human body

- EN ISO 13857:2008
  Safety distances to prevent hazard zones being reached by upper and lower limbs

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Example of a type B2-standard

- EN ISO 13856-1:2013
  Safety of machinery - Pressure-sensitive protective devices - Part 1 : General principles for the design and testing of pressure-sensitive mats and floors (2nd edition)
- EN ISO 13856-2:2013
  Safety of machinery - Pressure-sensitive protective devices - Part 2: General principles for the design and testing of pressure-sensitive strips and rods (2nd edition)
- EN IEC 61496-1:2020
  Safety of machinery - Electro-sensitive protective equipment - Part 1: General requirements and tests

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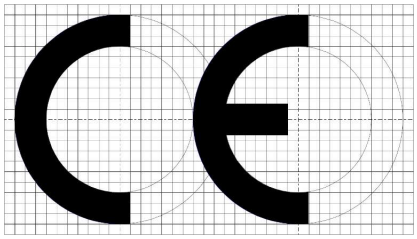
Example of a type C-standard

- EN 12547:2014
  Centrifuges - Common safety requirements

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Definition “CE marking”

- Art. 3 (25)
- ‘CE marking’ means a marking by which the manufacturer **indicates that machinery or a related product is in conformity with the applicable requirements set out in Union harmonisation legislation** providing for its affixing;
  ➔ *not only in conformity with the Machinery Regulation, in conformity with all applicable EU Regulations and Directives*



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Definition “Conformity assessment”

- Art. 3 (28)(29) (30)

- (28) ‘conformity assessment’ means the process for demonstrating whether the applicable essential health and safety requirements in this Regulation relating to machinery or related products have been fulfilled;
- (29) ‘conformity assessment body’ means a body that performs conformity assessment activities, including calibration, testing, certification and inspection;
- (30) ‘notified body’ means a conformity assessment body notified in accordance with this Regulation;

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Definition “Market surveillance”

- Art. 3 (31) (32) (33)

- (31) ‘market surveillance authority’ means a ‘market surveillance authority’ as defined in Article 3, point (4), of Regulation (EU) 2019/1020;
- (32) ‘recall’ means any measure aimed at achieving the return of a product within the scope of this Regulation that has already been made available to a user;
- (33) ‘withdrawal’ means, for a product, any measure aimed at preventing a product within the scope of this Regulation that is in the supply chain from being made available on the market;

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Definition “Lifetime”

- Art. 3 (34)
- ‘lifetime’ means the period from the moment that machinery or a related product is placed on the market or put into service until the moment that it is discarded, including the effective time when the machinery or related product is capable of being used and the phases of transport, assembly, dismantling, disabling, scrapping or other physical or digital modifications foreseen by the manufacturer;

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Definition “Source code”

- Art. 3 (35)
- ‘source code’ means the currently installed version of the software of a product within the scope of this Regulation, written in a programming language so that it is unambiguous and understandable to humans;

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Definition “Professional user”

- Art. 3 (36)
- ‘professional user’ means a natural person who uses or operates machinery or a related product in the course of his or her professional activity or work.

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Art. 4 Free movement

- 1. Member States shall **not impede**, for reasons relating to the aspects covered by this Regulation, **the making available on the market** of products within the scope of this Regulation or the putting into service of machinery or related products which comply with this Regulation.
- 2. **At trade fairs**, exhibitions and demonstrations or similar events, Member States shall **not prevent the display of a product within the scope of this Regulation which does not** comply with this Regulation, provided that a visible sign clearly indicates that it does not comply with this Regulation and will not be made available on the market until it has been brought into conformity.
- During demonstrations, adequate measures shall be taken to **ensure the protection of persons**.

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Art. 5 Protection of persons during installation or use of machinery or related product

- Member States may lay down **requirements to ensure that persons**, **including workers**, **are protected** when installing or using machinery or related products, provided that **such rules do not allow for the modification of machinery** or a related product in a way **that is not compatible** with this Regulation.

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Obligations of Economic Operators

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Art. 10 Obligations of manufacturers of machinery and …

- (1) When placing machinery or a related product on the market or putting it into service, manufacturers shall **ensure that it has been designed and constructed in accordance with the essential health and safety requirements** set out in *Annex III*
- (2) Before placing machinery or a related product on the market or putting it into service, manufacturers shall **draw up the technical documentation** set out in *Annex IV, Part A*
- (2) **Carry out the relevant conformity assessment procedure** referred to in Article 25 or have it carried out
- (2) Where compliance of machinery or a related product with the essential health and safety requirements laid down in Annex III has been demonstrated by that conformity assessment procedure, manufacturers shall **draw up the EU declaration of conformity** in accordance with Article 21
- (2) **Affix the CE marking** in accordance with Article 24
- (7) Manufacturers shall ensure that the machinery or related products are **accompanied by the instructions for use** and the information set out in Annex III. The instructions may be provided in a digital format. Such instructions and information shall clearly describe the product model to which they correspond.

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Art. 10 Obligations of manufacturers of machinery and ...

- (3) Manufacturers shall keep the **technical documentation** and the **EU declaration of conformity** at the **disposal of the market surveillance authorities** for **at least 10 years** after the machinery or the related product has been placed on the market or put into service.
- (3) Where relevant, the **source code or the programming logic** included in the technical documentation shall, upon a reasoned request, be made available to the competent national authorities, if that source code or programming logic is necessary in order for them to be able to check compliance with the essential health and safety requirements set out in Annex III.

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Art. 10 Obligations of manufacturers of machinery and ...

- (4) Manufacturers shall ensure that **procedures** are in place in order that machinery or related products that are part of **a series production remain in conformity** with this Regulation. Adequate account shall be taken of changes in the production process or in the design or characteristics of the machinery or related product, and changes in the harmonised standards, in other technical specifications, or in the common specifications referred to in Article 20 by reference to which the conformity of the machinery or related product is declared.
- (4) When deemed appropriate with regard to the risks presented by machinery or related products, manufacturers shall, in order to protect the health and safety of users, **carry out sample testing of machinery** or related products made available on the market and investigate their results. If necessary, manufacturers shall keep a register of complaints, of non conforming machinery or related products and machinery or related product recalls, and shall keep distributors informed of any such monitoring.

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Art. 10 Obligations of manufacturers of machinery and ...

- (5) Manufacturers shall ensure that the machinery or related product which they place on the market or put into service bears at least a **designation of the machinery** or related product **model**, series or **type**, the **year of construction**, namely the year in which the manufacturing process was completed, and any **batch or serial number** or other element allowing its identification that exists, or, where the size or nature of the machinery or related product does not allow this, that the required information is provided on the packaging or in a document accompanying the machinery or related product.
- (6) Manufacturers shall indicate their **name**, **registered trade name** or registered **trade mark**, and the **postal address** and **website**, **e-mail address** or other digital contact at which they can be contacted, on the machinery or related product or, where that is not possible, on its packaging or in a document accompanying the machinery or related product. The address shall indicate a single point at which the manufacturer can be contacted. The **contact details shall be in a language easily understood by users** and market surveillance authorities.

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Minimum requirements upon delivery

1. **Valid EU declaration of conformity** referring to (EU) 2023/1230
2. **CE marking** on the machinery + **type plate** on machinery
3. **Instructions for use**, including safety and maintanance instructionsin Dutch (official language regulation) and English (Sanofi internal rule)

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Art. 10 Obligations of manufacturers of machinery and ...

(7) **Instructions for use**

- When the **instructions for use are provided in digital format**, the manufacturer shall:
- (a) mark on the machinery or related product, or, where that is not possible, on its packaging or in an accompanying document, **how to access** the digital instructions;
- (b) present them in a **format that makes it possible for the user to print and download** the instructions for use and save them on an electronic device so that he or she can access them at all times, in particular during a breakdown of the machinery or related product; this requirement also applies where the instructions for use are embedded in the software of the machinery or related product;
- (c) make them **accessible online during the expected lifetime of the machinery** or related product and **for at least 10 years** after the placing on the market of the machinery or related product.
- However, at the **request of the user at the time of the purchase**, the manufacturer shall provide the instructions for use in paper format free of charge within one month.
- In the case of machinery or a related product intended for **non-professional users** or that can, under reasonably foreseeable conditions, be used by non-professional users, even if not intended for them, the manufacturer shall provide, in **paper format**, the **safety information** that is essential for putting the machinery or related product into service and for using it in a safe way.
- The instructions for use, the safety information and the information set out in Annex III shall be **in a language which can be easily understood by users**, **as determined by the Member State concerned**, and shall be clear, understandable and legible.

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Art. 10 Obligations of manufacturers of machinery and …

- (8) Manufacturers shall ensure that the machinery or related product is accompanied by the EU declaration of conformity set out in Annex V, Part A or, alternatively, manufacturers shall provide **the internet address or machine-readable code where that EU declaration of conformity can be accessed in the instructions for use** and the information set out in Annex III.
- (8) Digital EU declarations of conformity shall be made accessible online for the **expected lifetime of the machinery** or related product and in any event for **at least 10 years** after the placing on the market or the putting into service of the machinery or related product

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Art. 10 Obligations of manufacturers of machinery and ...

- (9) Manufacturers who consider or have reason to believe that machinery or a related product, which they have placed on the market or put into service is **not in conformity** with this Regulation **shall immediately take the corrective actions necessary to bring that machinery or related product into conformity, to withdraw it or to recall it, as appropriate**. Furthermore, where the machinery or related product **presents a risk** to the health or safety of persons, and, where appropriate, domestic animals or to property, and, where applicable, to the environment, **manufacturers shall immediately inform the competent national authorities of the Member States** in which they made the machinery or related product available on the market, or in which they put it into service, to that effect, giving details, in particular, of the non-conformity and of any corrective actions taken

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Art. 10 Obligations of manufacturers of machinery and …

- (10) Manufacturers shall, further to a **reasoned request from a competent national authority**, provide that authority with all the information and documentation, in paper or digital format, necessary to demonstrate the conformity of the machinery or related products with this Regulation, in a language which can be easily understood by that authority.
  They shall cooperate with that authority, at its request, on any actions taken to eliminate the risks presented by the machinery or related products, which they have placed on the market or put into service

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Art. 11 Obligations of manufacturers of partly completed machinery

- (1) When placing partly completed machinery on the market, manufacturers shall ensure that it has been designed and constructed **in accordance with the relevant essential health and safety requirements** set out in Annex III
- (2) Before placing partly completed machinery on the market, manufacturers shall draw up the **technical documentation** set out in Annex IV, Part B
- (2) Where compliance of partly completed machinery with the relevant essential health and safety requirements set out in Annex III has been demonstrated in the technical documentation set out in Annex IV, Part B, manufacturers shall **draw up the EU declaration of incorporation** in accordance with Article 22.
- (7) Manufacturers shall ensure that the partly completed machinery is **accompanied by the assembly instructions** set out in Annex XI. The assembly instructions may be provided by the manufacturer in digital format.

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Art. 11 Obligations of manufacturers of partly completed machinery

- (3) Manufacturers shall keep the **technical documentation** and the **EU declaration of incorporation** at the disposal of the market surveillance authorities **for at least 10 years** after the partly completed machinery has been placed on the market.
- (3) Where relevant, the **source code or the programming logic** included in the technical documentation shall, upon a reasoned request, be made available to the competent national authorities, if that source code or programming logic is necessary in order for them to be able to check compliance with the relevant essential health and safety requirements set out in Annex III.

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Art. 11 Obligations of manufacturers of partly completed machinery

- (4) Manufacturers shall ensure that procedures are in place for partly completed machinery that is part of a series production to remain in conformity with this Regulation. Adequate account shall be taken of changes in the production process, or in the design or characteristics of the partly completed machinery, and changes in the harmonised standards or other technical specifications, or in the common specifications referred to in Article 20, by reference to which the conformity of the partly completed machinery is declared or verified.

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Art. 11 Obligations of manufacturers of partly completed machinery

- (5) Manufacturers shall ensure that the partly completed machinery which they place on the market bears at least the **designation of the partly completed machinery**, the **year of construction**, namely the year in which the manufacturing process was completed, **model** and series or **type** and any **batch or serial number** or other element allowing its identification that exists, or, where the size or nature of the partly completed machinery does not allow this, that the required information is provided on the packaging or in a document accompanying the partly completed machinery.
- (6) Manufacturers shall indicate their **name**, registered trade name or registered **trade mark**, and the **postal address** and **website**, **email address** or other **digital contact** at which they can be contacted, on the partly completed machinery or, where that is not possible, on its packaging or in a document accompanying the partly completed machinery. The address shall indicate a single point at which the manufacturer can be contacted. The contact details shall be in a **language easily understood by the person who incorporates the partly completed machinery into machinery** and by market surveillance authorities.

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Art. 11 Obligations of manufacturers of partly completed machinery

(7) **Assembly instructions**

- When the **assembly instructions are provided in digital format**, the manufacturer shall:
- (a) mark on the partly completed machinery, or, where that is not possible, on its packaging or in an accompanying document, **how to access** the digital instructions;
- (b) present them in a **format that makes it possible for the person who incorporates the partly completed machinery to print and download** the assembly instructions and save them on an electronic device so that he or she can access them at all times, in particular during a breakdown of the partly completed machinery; this requirement also applies where the assembly instructions are embedded in the software of the machinery or related product;
- (c) make them **accessible online for at least 10 years** after the placing on the market of the partly completed machinery.
- However, at the request of the person who incorporates the partly completed machinery **at the time of purchase**, the manufacturer shall provide the assembly instructions in paper format free of charge within one month.
- The assembly instructions shall be **in a language which can be easily understood by the person who incorporates** the partly completed machinery, **as determined by the Member State concerned**, and shall be clear, understandable, and legible.

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Art. 11 Obligations of manufacturers of partly completed machinery

- (8) Manufacturers shall ensure that the partly completed machinery is **accompanied by the EU declaration of incorporation** set out in Annex V, Part B or, alternatively, manufacturers shall provide the internet address or machine readable code where that EU declaration of incorporation can be accessed in the assembly instructions set out in Annex XI.
- (8) **Digital EU declarations of incorporation** shall be made accessible online for **at least 10 years** after the placing on the market of the partly completed machinery

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Art. 11 Obligations of manufacturers of partly completed machinery

- (9) Manufacturers who consider or have reason to believe that partly completed machinery which they have placed on the market is **not in conformity** with this Regulation shall immediately **take the corrective actions** necessary to bring that partly completed machinery into conformity, to **withdraw** it or to **recall** it, as **appropriate**.
- (9) Furthermore, where the partly completed machinery **presents a risk** as regards the relevant essential health and safety requirements, manufacturers shall immediately **inform the competent national authorities** of the Member States in which they made the partly completed machinery available on the market to that effect, giving details, in particular, of the non-conformity and of any corrective actions taken.

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Art. 11 Obligations of manufacturers of partly completed machinery

- (10) Manufacturers shall, further to a **reasoned request** from a competent national authority, provide that authority with all the information and documentation, in paper or digital format, necessary to demonstrate the conformity of the partly completed machinery with this Regulation, in a language which can be easily understood by that authority. They shall cooperate with that authority, at its request, on any actions taken to eliminate the risks as regards the relevant essential health and safety requirements presented by the partly completed machinery, which they have placed on the market.

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Art. 12 Authorised representatives

- (1) A manufacturer may, by a written mandate, **appoint an authorised representative**.
  The obligations laid down in Article 10(1) and Article 11(1) and the obligation to draw up the technical documentation shall not form part of the authorised representative's mandate.
- (2) An authorised representative shall perform the tasks specified in the mandate received from the manufacturer. The **mandate shall allow the authorised representative to** do at least the following:
  - (a) **keep the technical documentation** and the EU declaration of conformity of machinery or the EU declaration of incorporation of partly completed machinery at the disposal of the national market surveillance authorities for at least 10 years after the product has been placed on the market;
  - (b) further to a reasoned request from a competent national authority, **provide that authority with all the information** and documentation necessary to demonstrate the conformity of the product within the scope of this Regulation, either in paper or digital format;
  - (c) **cooperate with the competent national authorities**, at their request, on any actions taken to eliminate the risks presented by a product within the scope of this Regulation covered by the authorised representative's mandate.

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Art. 13 Obligations of importers of machinery and related products

- (1) Importers shall **place only compliant machinery** or related products on the market.
- (2) Before placing machinery or a related product on the market, importers shall **ensure that the appropriate conformity assessment procedures have been carried out** by the manufacturer. They shall ensure that the manufacturer has drawn up the **technical documentation**, that the machinery or related **product bears the CE marking** and is **accompanied by the required documents**,
  - Valid EU declaration of conformity referring to (EU) 2023/1230
  - CE marking on the machinery + type plate on machinery
  - Instructions for use
- (2) Where an importer considers or has reason to believe that machinery or a related product is **not in conformity** with this Regulation, the importer shall **not place it on the market until it has been brought into conformity**. Furthermore, where the machinery or related product presents a **risk to the health and safety of persons** and, where appropriate, domestic animals and property, and, where applicable, to the environment, the importer shall **inform the manufacturer and the market surveillance authorities** to that effect.

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Art. 13 Obligations of importers of machinery and related products

- (3) Importers shall indicate their **name**, registered trade name or registered **trade mark**, and the **postal address** and **website**, **email address** or other **digital contact** at which they can be contacted, on the machinery or related product or, where that is not possible, on its packaging or in a document accompanying the machinery or related product. The contact details shall be in a language easily understood by users and market surveillance authorities.
- (4) Importers shall ensure that the machinery or related product is **accompanied by the instructions for use**.
- (5) Importers shall ensure that, while the machinery or related product is under their responsibility, the storage or transport conditions do not jeopardise conformity with the essential health and safety requirements set out in Annex III.

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Art. 13 Obligations of importers of machinery and related products

- (6) When deemed appropriate with regard to the risks presented by machinery or a related product, importers shall, in order to protect the health and safety of persons, and where appropriate, domestic animals and property, and, where applicable, the environment carry out sample testing of machinery or related products made available on the market, investigate, and, if necessary, keep a register of complaints, of non-conforming machinery or related products and machinery or related product recalls, and shall keep distributors informed of any such monitoring.

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Art. 13 Obligations of importers of machinery and related products

- (7) Importers who consider or have reason to believe that machinery or a related product, which they have placed on the market, is **not in conformity** with this Regulation shall immediately take the corrective actions necessary to **bring that machinery or related product into conformity**, to **withdraw** it or **recall** it, as **appropriate**.
  Furthermore, where the machinery or related product **presents a risk** to the health and safety of persons and, where appropriate, domestic animals and property, and, where applicable, to the environment, importers shall immediately **inform the competent national authorities of the Member States** in which they made the machinery or related product available on the market to that effect, giving details, in particular, of the non-conformity and of any corrective actions taken.

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Art. 13 Obligations of importers of machinery and related products

- (8) Importers shall, **for at least 10 years** after the machinery or related product has been placed on the market, keep a **copy of the EU declaration of conformity** at the disposal of the market surveillance authorities and **ensure that the technical documentation** set out in Annex IV, Part A, can be made **available to those authorities** upon request.

- (8) Where relevant, the source code or the programming logic included in the technical documentation shall, upon a reasoned request, be made available to the competent national authorities, if that source code or programming logic is necessary in order for them to be able to check compliance with the essential health and safety requirements set out in Annex III.

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Art. 13 Obligations of importers of machinery and related products

- (9) Importers shall, further to a **reasoned request** from a competent national authority, **provide that authority with all the information and documentation**, in paper or digital format, necessary to demonstrate conformity of the machinery or related products with this Regulation in a language that can be easily understood by that authority. Importers shall cooperate with that authority, at its request, on any action taken to eliminate the risks to the health and safety of persons and, where appropriate, domestic animals and property, and, where applicable, to the environment presented by machinery or related products which they have placed on the market

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Art. 14 Obligations of importers of partly completed machinery

- (1) Importers shall **place only compliant partly completed machinery** on the market.
- (2) Before placing partly completed machinery on the market, importers shall ensure that the manufacturer has drawn up the **technical documentation**, that the partly completed machinery is accompanied by the required documents,
  - Type plate on machinery
  - Assembly instructions
- (2) Where an importer considers or has reason to believe that partly completed machinery is **not in conformity** with this Regulation, the importer shall **not place it on the market until it has been brought into conformity**. Furthermore, where the partly completed machinery presents a **risk** as regards the relevant essential health and safety requirements, the importer shall **inform the manufacturer and the market surveillance authorities** to that effect.

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Art. 14 Obligations of importers of partly completed machinery

- (3) Importers shall indicate their **name**, registered trade name or registered trade mark, and the **postal address** and **website**, **email address** or other **digital contact** at which they can be contacted, on the partly completed machinery or, where that is not possible, on its packaging or in a document accompanying the partly completed machinery. The contact details shall be in a **language easily understood by the person who incorporates** the partly completed machinery and by the market surveillance authorities.
- (4) Importers shall ensure that the partly completed machinery is **accompanied by the assembly instructions**.
- (5) Importers shall ensure that, while the partly completed machinery is under their responsibility, the storage or transport conditions do not jeopardise the conformity with the relevant essential health and safety requirements set out in Annex III.

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Art. 14 Obligations of importers of partly completed machinery

- (6) Importers who consider or have reason to believe that partly completed machinery which they have placed on the market is **not in conformity** with this Regulation shall **immediately take the corrective actions** necessary to bring that partly completed machinery into conformity, to **withdraw** it or **recall** it, as **appropriate**.
- (6) Furthermore, where the partly completed machinery **presents a risk** as regards relevant essential health and safety requirements, importers shall **immediately inform the competent national authorities** of the Member States in which they made the partly completed machinery available on the market to that effect, giving details, in particular, of the non-conformity and of any corrective actions taken.

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Art. 14 Obligations of importers of partly completed machinery

- (7) Importers shall, for **at least 10 years** after the partly completed machinery has been placed on the market, keep a copy of the **EU declaration of incorporation** at the disposal of the market surveillance authorities and **ensure that the technical documentation** set out in Annex IV, Part B can be made available to those authorities upon request.
- (8) Importers shall, further to a **reasoned request** from a competent national authority, provide that authority with all the information and documentation, in paper or digital format, necessary to demonstrate the conformity of the partly completed machinery with this Regulation in a language that can be easily understood by that authority. Importers shall cooperate with that authority, at its request, on any action taken to eliminate the risks as regards the relevant essential health and safety requirements presented by a partly completed machinery, which they have placed on the market.

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Art. 15 Obligations of distributor of machinery and related products

- (1) When making machinery or a related product available on the market, distributors shall **act with due care** in relation to the requirements of this Regulation.
- (2) Before making machinery or a related product available on the market, distributors shall verify that:
  - (a) the machinery or related product bears the CE marking;
  - (b) the machinery or related product is accompanied by the EU declaration of conformity;
  - (c) the machinery or related product is accompanied by the instructions for use, and that they are in a language which can be easily understood by users, as determined by the Member State in which the machinery or related product is to be made available on the market;
  - (d) the manufacturer and the importer have complied with the requirements referred to in Article 10(5) and (6) and

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Art. 15 Obligations of distributor of machinery and related products

- (3) Where a distributor considers or has reason to believe that machinery or a related product is not in conformity with this Regulation, the distributor shall not make the machinery or related product available on the market until it has been brought into conformity. Furthermore, where the machinery or related product presents a risk to the health and safety of persons and, where appropriate, domestic animals and property, and, where applicable, to the environment, the distributor shall inform the manufacturer or the importer as well as the market surveillance authorities to that effect.

- (4) Distributors shall ensure that, while machinery or a related product is under their responsibility, the storage or transport conditions do not jeopardise conformity with the essential health and safety requirements set out in Annex III.

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Art. 15 Obligations of distributor of machinery and related products

- (5) Distributors who consider or have reason to believe that machinery or a related product which they have made available on the market is not in conformity with this Regulation shall make sure that the corrective actions necessary to bring that machinery or related product into conformity, to withdraw it or recall it, as appropriate, are taken.
- (5) Furthermore, where the machinery or related product presents a risk to the health and safety of persons and, where appropriate, domestic animals and property, and, where applicable, to the environment, distributors shall immediately inform the competent national authorities of the Member States in which they have made the machinery or related product available on the market to that effect, giving details, in particular, of the non-conformity and of any corrective actions taken.

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Art. 15 Obligations of distributor of machinery and related products

- (6) Distributors shall, further to a reasoned request from a competent national authority, provide that authority with all the information and documentation, in paper or digital format, necessary to demonstrate the conformity of the machinery or related product with this Regulation in a language that can be easily understood by that authority. They shall cooperate with that authority, at its request, on any action taken to eliminate the risks to the health and safety of persons and, where appropriate, domestic animals and property, and, where applicable, to the environment presented by machinery or a related product which they have made available on the market.

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Art. 16 Obligations of distributor of partly completed machinery

- (1) When making partly completed machinery available on the market, distributors shall **act with due care** in relation to the requirements of this Regulation.
- (2) Before making partly completed machinery available on the market, distributors shall verify that:
  - (a) the partly completed machinery is accompanied by the EU declaration of incorporation;
  - (c) the partly completed machinery is accompanied by the assembly instructions, and that they are in a language which can be easily understood by the person who incorporates the partly completed machinery as determined by the Member State in which the partly completed machinery is to be made available;
  - on the market (d) the manufacturer and the importer have complied with the requirements referred to in Article 10(5) and (6) and Article 14(3).

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Art. 16 Obligations of distributor of partly completed machinery

- (3) Where a distributor considers or has reason to believe that partly completed machinery is not in conformity with this Regulation, the distributor shall not make the partly completed machinery available on the market until it has been brought into conformity. Furthermore, where the partly completed machinery presents a risk as regards relevant essential health and safety requirements, the distributor shall inform the manufacturer or the importer as well as the market surveillance authorities to that effect.

- (4) Distributors shall ensure that, while a partly completed machinery is under their responsibility, the storage or transport conditions do not jeopardise conformity with the relevant essential health and safety requirements set out in Annex III.

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Art. 16 Obligations of distributor of partly completed machinery

- (5) Distributors who consider or have reason to believe that partly completed machinery which they have made available on the market is not in conformity with this Regulation shall make sure that the corrective actions necessary to bring that partly completed machinery into conformity, to withdraw it or recall it, as appropriate, are taken.
- (5) Furthermore, where the partly completed machinery presents a risk as regards the relevant essential health and safety requirements distributors shall immediately inform the competent national authorities of the Member States in which they have made the partly completed machinery available on the market to that effect, giving details, in particular, of the non-conformity and of any corrective actions taken.

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Art. 16 Obligations of distributor of partly completed machinery

- (6) Distributors shall, further to a reasoned request from a competent national authority, provide that authority with all the information and documentation, in paper or digital format, necessary to demonstrate the conformity of the partly completed machinery with this Regulation. They shall cooperate with that authority, at its request, on any action taken to eliminate the risks as regards the essential health and safety requirements presented by partly completed machinery which they have made available on the market.

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Art. 17 Cases in which obligations of manufacturers apply to importers and distributors

- An importer or distributor shall be considered to be a manufacturer for the purposes of this Regulation, and shall be subject to the obligations of the manufacturer set out in Articles 10 and 11, where that importer or distributor places a product within the scope of this Regulation on the market under its name or trademark or modifies a product already placed on the market in such a way that compliance with the applicable requirements might be affected.

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Art. 18 Other cases in which obligations of manufacturers apply

- A **natural or legal person** that carries out a **substantial modification of machinery** or a related product shall be considered to be a manufacturer for the purposes of this Regulation and shall be subject to the obligations of the manufacturer set out in Article 10 for that machinery or related product or, if the substantial modification has an impact on the safety of only machinery or a related product that is part of an assembly of machinery, for that affected machinery or related product, as demonstrated in the risk assessment.
- The **person who carries out the substantial modification** shall in particular, but without prejudice to other obligations set out in Article 10, ensure and **declare on its sole responsibility that the machinery or related product concerned is in conformity with the applicable requirements** of this Regulation and shall apply the relevant conformity assessment procedure as provided in Article 25 (2), (3) and (4) of this Regulation.
- A **non-professional user who carries out a substantial modification** to his or her machinery or related product, for his or her own use, shall **not be considered to be a manufacturer** for the purposes of this Regulation and shall not be subject to the obligations on the manufacturer set out in Article 10.

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	Obligation	Manufacturer	Importer	Distributor	Authorised representative
Machinery or related products	*Place only compliant machinery or related products on the market*	Yes	Yes		
	Ensure that it has been designed and constructed in accordance with the **essential health and safety requirements**	Yes			
	Draw up the **technical documentation**	Yes			
	Keep the technical documentation for at least 10 years	Yes	Yes		Yes
	Ensure that the manufacturer has drawn up the technical documentation		Yes		
	Carry out the relevant **conformity assessment procedure**	Yes			
	Ensure that the appropriate conformity assessment procedures have been carried out by the manufcaturer		Yes		
	Draw up the **EU declaration of conformity**	Yes			
	Keep the EU declaration of conformity for at least 10 years	Yes	Yes		Yes
	Ensure that it is accompanied by the EU declaration of conformity or make digital EU declaration of conformity accessible online for the expected lifetime and for at least 10 years	Yes	Yes		
	Verify that the machinery or related product is accompanied by the EU declaration of conformity			Yes	
	Provide the internet address or machine-readable code where the EU declaration of conformity can be accessed in the instructions for use	Yes			
	Affix the **CE marking**	Yes			
	Ensure that the machinery or related product bears the CE marking		Yes		
	Verify that the machinery or related product bears the CE marking			Yes	
	Ensure that it is accompanied by the **instructions for use** or acessible online in printable format (lifetime / at least 10 years) in a language easily understood by users as determined by the Member State concerned	Yes	Yes		
	Verify that the machinery or related product is accompanied by the instructions for use in a language easily understood by users as determined by the Member State concerned			Yes	
	Make available, upon request, the source code or the programming logic, to the national authorities	Yes	Yes		
	Series production: procedures are in place to ensure conformity	Yes			
	Series production: carry out sample testing of machinery	Yes			
	Designation of machinery: model, type, year of construction, batch or serial number	Yes			
	Ensure designation of machinery: model, type, year of construction, batch or serial number		Yes		
	Verify designation of machinery: model, type, year of construction, batch or serial number			Yes	
	Indication of name, trade name or trade mark, postall adress, website, e-mail adress or other digital contact in a language easily understood by users (document)	Yes	Yes		
	Verify indication of name, trade name or trade mark, postall adress, website, e-mail adress or other digital contact in a language easily understood by users (document)			Yes	
	Immidiately take corrective actions, withdraw or recall in case of non conformity	Yes	Yes	Yes	?
	Not place it on the market in case of non conformity	Yes	Yes	Yes	
	Immidiately inform the national authorities in case of a risk to health and safety of persons, domestic animals, to properties or the environment	Yes	Yes	Yes	
	Immidiately inform the manufacturer in case of a risk to health and safety of persons, domestic animals, to properties or the environment		Yes	Yes	
	Immidiately inform the importer in case of a risk to health and safety of persons, domestic animals, to properties or the environment			Yes	
	Provide all the information and documentation to the national authorities upon their request	Yes	Yes	Yes	Yes

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	Obligation	Manufacturer	Importer	Distributor	Authorised representative
Partly completed machinery	*Place only compliant partly completed machinery on the market*	Yes	Yes		
	Ensure that it has been designed and constructed in accordance with the **relevant essential health and safety requirements**	Yes			
	Draw up the **technical documentation**	Yes			
	Keep the technical documentation for at least 10 years	Yes	Yes		Yes
	Ensure that the manufacturer has drawn up the technical documentation		Yes		
	Draw up the **EU declaration of incorporation**	Yes			
	Keep the EU declaration of incorporation for at least 10 years	Yes	Yes		Yes
	Ensure that it is accompanied by the EU declaration of incorporation or make digital EU declaration of conformity accessible online for the expected lifetime and for at least 10 years	Yes	Yes		
	Verify that it is accompanied by the EU declaration of incorporation			Yes	
	Provide the internet address or machine-readable code where the EU declaration of incorporation can be accessed in the assembly instructions	Yes			
	*Ensure that it is accompanied by the **assembly instructions** or acessible online in printable format (lifetime / at least 10 years) in a language easily understood by users as determined by the Member State concerned*	Yes	Yes		
	Verify that it is accompanied by the assembly instructions, in a language which can be easily understood by the person who incorporates the partly completed machinery as determined by the Member State concerned			Yes	
	Make available, upon request, the source code or the programming logic, to the national authorities	Yes			
	Series production: procedures are in place to ensure conformity	Yes			
	Designation of partly completed machinery: model, type, year of construction, batch or serial number	Yes			
	Ensure designation of partly completed machinery: model, type, year of construction, batch or serial number		Yes		
	Verify designation of partly completed machinery: model, type, year of construction, batch or serial number			Yes	
	Indication of name, trade name or trade mark, postall adress, website, e-mail adress or other digital contact in a language easily understood by the person who incorporates the partly completed machinery into machinery (doc)	Yes	Yes		
	Verify indication of name, trade name or trade mark, postall adress, website, e-mail adress or other digital contact in a language easily understood by the person who incorporates the partly completed machinery into machinery (doc)			Yes	
	Immidiately take corrective actions, withdraw or recall in case of non conformity	Yes	Yes	Yes	?
	Not place it on the market in case of non conformity	Yes	Yes	Yes	
	Immidiately inform the national authorities in case of a risk to health and safety of persons, domestic animals, to properties or the environment	Yes	Yes	Yes	
	Immidiately inform the manufacturer in case of a risk to health and safety of persons, domestic animals, to properties or the environment		Yes	Yes	
	Immidiately inform the importer in case of a risk to health and safety of persons, domestic animals, to properties or the environment			Yes	
	Provide all the information and documentation to the national authorities upon their request	Yes	Yes	Yes	Yes

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Conformity of Products within the scope of this Regulation

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Art. 20 Presumption of conformity

- (1) A product within the scope of this Regulation which is **in conformity with harmonised standards** or parts thereof the references of which have been published in the Official Journal of the European Union **shall be presumed to be in conformity with the essential health and safety requirements set out in Annex III covered by those standards** or parts thereof.
- (2) The Commission shall request one or more European standardisation organisations to draft harmonised standards for the essential health and safety requirements set out in Annex III.
- (3) The Commission may adopt implementing acts establishing common specifications covering technical requirements that provide a means to comply with the essential health and safety requirements set out in Annex III for products within the scope of this Regulation.

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Art. 21 EU declaration of conformity of machinery and related products

- (1) The EU declaration of conformity shall **state that the fulfilment of the applicable essential health and safety requirements set out in Annex III has been demonstrated**.
- (2) The EU declaration of conformity shall **have the model structure set out in Annex V, Part A**, and shall contain the **elements specified in the relevant modules** set out in Annexes VI, VIII, IX, and X. It shall be continuously updated and shall be **translated into the language or languages required by the Member State** in which the machinery or related product is placed on the market, is made available on the market or put into service.
- (3) Where machinery or a related product is **subject to more than one Union legal act** that requires an EU declaration of conformity, **a single EU declaration of conformity** shall be drawn up in respect of all such acts. That declaration shall **contain the identification of the Union legal acts concerned**, including their publication references.
- (4) By drawing up the EU declaration of conformity, the **manufacturer shall assume responsibility for the compliance of the machinery o**r related product with the requirements laid down in this Regulation.

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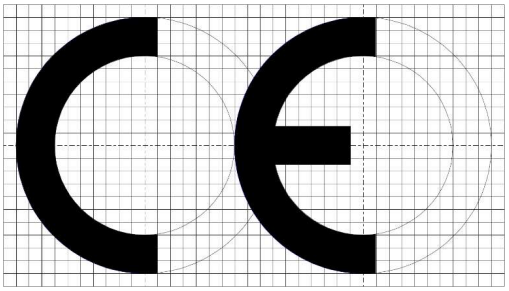
Art. 22 EU declaration of incorporation of partly completed machinery

- (1) The EU declaration of incorporation shall state that the **fulfilment of the relevant essential health and safety requirements** set out in Annex III has been demonstrated.
- (2) The EU declaration of incorporation shall have the **model structure set out in Annex V, Part B**. It shall be continually updated and shall be **translated into the language or languages required by the Member State** in which the partly completed machinery is placed on the market or is made available on the market.
- (3) Where partly completed machinery is **subject to more than one Union legal** act requiring an EU declaration of conformity, the EU declaration of incorporation shall include a sentence declaring the conformity with such acts. That declaration shall **contain the identification of the Union legal acts concerned**, including their publication references.
- (4) By drawing up the EU declaration of incorporation, the **manufacturer shall assume responsibility for the compliance** of the partly completed machinery with the requirements laid down in this Regulation.

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Art. 23 General principles of the CE marking

- The CE marking shall be subject to the general principles set out in Article 30 of Regulation (EC) No 765/2008.



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Art. 24 Rules for affixing the CE marking to machinery and related products

- (1) The CE marking shall be affixed **visibly, legibly and indelibly** to the machinery or related product. Where that is not possible or not warranted on account of the nature of the machinery or related product, it shall be affixed to the packaging and to the documents accompanying the machinery or related product.
- (2) The CE marking shall be **affixed before the machinery or related product is placed on the market or put into service**.
- (3) Where the conformity of machinery or a related product is assessed in accordance with the conformity assessment procedure referred to in Article 25(2), points (a), (b) and (c) and in Article 25(3), points (b), (c) and (d), the CE marking shall be followed by the **identification number of the notified body involved** in that procedure. The identification number of that notified body shall be affixed by the body itself or, under its instructions, by the manufacturer or the manufacturer's authorised representative.
- (4) The CE marking and, where applicable, the identification number of the notified body may be followed by a pictogram or any other marking indicating a special risk or use.
- (5) Member States shall build upon existing mechanisms to ensure correct application of the regime governing the CE marking and shall take appropriate action in the event of improper use of that marking.

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